

Insolvency and Bankruptcy Board of India (Annual Report) Rules, 2018

Source: <https://indiankanoon.org/doc/191033762/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

Insolvency and Bankruptcy Board of India (Annual Report) Rules, 2018

UNION OF INDIA

India

Insolvency and Bankruptcy Board of India (Annual Report) Rules, 2018

Rule INSOLVENCY-AND-BANKRUPTCY-BOARD-OF-INDIA-ANNUAL-REPORT-RULES-2018 of 2018

Published on 1 May 2018

Commenced on 1 May 2018

[This is the version of this document from 1 May 2018.]

[Note: The original publication document is not available and this content could not be verified.]

Insolvency and Bankruptcy Board of India (Annual Report) Rules, 2018

Published vide Notification No. G.S.R. 422(E), dated 1.5.2018

G.S.R. 422(E). - In exercise of the powers conferred by clause (zm) of sub-section (2) of section 239 read with sub-section (1) of section 229 of the Insolvency and Bankruptcy Code, 2016 (No. 31 of 2016), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Insolvency and Bankruptcy Board of India (Annual Report) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Code" means the Insolvency and Bankruptcy Code, 2016 (31 of 2016);

(b)

words and expressions used in these rules but not defined, and defined in the Code shall have the meanings respectively assigned to them in the Code.

3.

Form of Annual Report.

- The Board shall prepare its annual report, giving a true and full accounts of its activities, policies and programmes, during the previous financial year in the Form annexed to these rules.

4.

Time of furnishing of the Annual Report.

- The Board shall submit a copy of the annual report referred to in rule 3 to the Central Government within ninety days of the end of the financial year.

Form of the Annual Report

[see rule 3]

(A)

Chairpersons statement:

(B)

The year in review:

(C)

A true and full account of policies, programmes and activities of the Board in respect of-

(i)

Service Providers, namely, Insolvency Professionals, Insolvency Professional Agencies, and Information Utilities:

(ii)

Transactions, namely, Corporate Insolvency Resolution, Corporate Liquidation, Individual Insolvency Resolution and Individual Bankruptcy:

(iii)

Advocacy and Awareness:

(iv)

Research:

(D)

A review of the quasi-legislative, executive and quasi-judicial functions of the Board:

(E)

An analysis of outcomes in terms of transactions and transactional efficiencies:

(F)

Summary data - time series or cross section - as may be relevant and available, about the outcomes that may facilitate appreciation of the working of the Code and the Board and promote research:

(G)

Impact of the Code on credit market, resource recycling and the economy:

(H)

An assessment of the effectiveness and the efficiency of the Board in terms of its objectives and mandate keeping in view its resources, duties and powers:

(I)

An assessment of performance of the Governing Board and its vision, policies and programmes for the following year:

(J)

A summary of financial performance of the Board;

(K)

A statement of non-compliance, if any, with statutory obligations by the Board and the reason for the same;

(L)

Organisational Matters, including Human Resources, Finance and Accounts, Audit Committee, Right to Information and Transparency:

(M)

Such other details as would enable the stakeholders to review and appreciate the performance of the Board:

Related AI tags, queries and research notes

Translation